

24VECV02645 24VECV02645

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-09-04

Motion: PLAINTIFF'S MOTION TO TAX DEFENDANT'S COSTS

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Case Number: 24VECV02645 Hearing Date: September 4, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST
DISTRICT

VITA ANDRISANO, an individual;

Plaintiff,

vs.

GUOCHUAN EMIL TSAI, et al.

Defendants.

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CASE NO: 24VECV02645

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION
TO TAX DEFENDANT'S COSTS

Dept. U

8:30 a.m.

September 4, 2026

A. BACKGROUND

This

case involves a motor vehicle accident. Plaintiff Vita Andrisano ("Plaintiff") filed this action on June 6, 2024 against Defendant Guochuan Emil Tsai and Does 1-20 alleging cause of action for Negligence. The Complaint alleges that on November 2, 2023, Plaintiff was driving a 2012 Honda Civic on Victory Blvd at its intersection with Westfield Way, when Defendant caused a collision by negligently operating a 2005 Lexus ES. (Compl., ¶ 8.)

This action went to trial on February 23, 2026 and concluded on March 10, 2026. Judgment was entered in

favor of Defendant against Plaintiff on March 23, 2026.

Plaintiff filed this motion to tax costs on April 16, 2026. Defendant filed an opposition on August 13, 2026. Plaintiff filed a reply on August 19, 2026.

B. RULING

The Court GRANTS Plaintiff's motion to tax costs in part. Defendant Guochuan Tsai shall recover from Plaintiff Vita Andrisano costs in the amount of \$47,096.97.

C. LEGAL STANDARD

To obtain costs, the prevailing party must file and serve a memorandum of costs, which "must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700(a).)

Copies of bills, invoices, statements, or other documentation need not be attached to the memorandum (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267), but the memorandum must provide enough detail to determine the cost sought is statutorily awardable. (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 132.) If the items on the face of the cost memorandum appear to be proper charges, the verified cost memorandum is prima facie evidence of their propriety, and it is the challenging party who bears the burden to show the costs were not reasonable or necessary. (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.) The only identifiable requirement for a memo of costs is that it set forth the costs claimed and be verified. (Cal. Rules of Court, rule 3.1700(a)(1).)

The mere filing of a motion to tax costs may be a proper objection to an item if the necessity of that item appears doubtful, does not appear to be proper on its face (Nelson, supra, 72 Cal.App.4th at p. 131), or presents a legal question (Fennessy v. Deleuw-Cather Corporation (1990) 218 Cal.App.3d 1192,

1195–1996 (motion to tax questioning entitlement to deposition costs incurred by all six Defendants represented by the same counsel was sufficient to place the cost at issue without additional declarations or affidavits).) If CCP section 1033.5 expressly allows the particular item and it appears proper on its face, the burden is on the objecting party to show the costs to be unnecessary or unreasonable. (Nelson, supra, 72 Cal.App.4th at p. 131.)

If costs are properly placed at issue, the burden of proof shifts to the party seeking costs to justify them by providing evidence and supporting documentation that the costs were reasonable and necessarily incurred. (Ladas, supra, 19 Cal.App.4th at p. 774; Jones, supra, 63 Cal.App.4th at p. 1267.)

D. DISCUSSION

Plaintiff moves to tax Defendant's memo of costs filed on April 2, 2026, on grounds that Defendant failed to provide any documentation in support of the motion to tax costs. Plaintiff also moves to tax individual items as follows: (1) Items 4 a-e: Deposition costs in their entire amount of \$19,715.19; (2) Item 5a: Service of Process Costs in its entire amount of \$500.00; (3) Item 8b(1) through [unstated]: Expert Fees in their entire amount of \$106,307.00; (4) Item 12a: Court Reporter Fees in their entire amount of \$18,904.88; (5) Item 13: Models, enlargement and photocopy of exhibits on their entire amount of \$5,692.59; and (6) Item 15 (other): Magna Legal Service Fees in its entire amount of \$8,349.25.

Plaintiff also argues that Defendant's 998 offer from June 17, 2025 was replaced by the successive offer made on February 5, 2026. Further, Plaintiff argues that the 998 offer from February 5, 2026 is invalid on its face. As a result, Plaintiff contends that certain expert costs are not recoverable.

In opposition, Defendant submitted over 100 pages of documentation to support its memo of costs. Defendant claims that the binding 998 offer is in fact the one issued on June 17, 2025, and therefore Defendant is entitled to recover costs, including expert costs, from June 17, 2025, forward. Defendant argues that the 998 offer is valid on its face.

In reply, Plaintiff

argues that (1) Defendant did not dispute that his February 5, 2026, 998 offer is binding, and (2) any pre-offer expert cost is not recoverable by statute. Plaintiff further reiterates that the 998 offer was invalid on its face.

1. Code

of Civil Procedure Section 998

“If an offer made

by a Defendant is not accepted and the Plaintiff fails to obtain a more favorable judgment or award ... the court or arbitrator, in its discretion, may require the Plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the Defendant.” (Code Civ. Proc., § 998, subd.

(c)(1).) An offer to compromise under this statute “must be sufficiently specific to allow the recipient to evaluate the worth of the offer and make a reasoned decision whether to accept the offer.” (Covert v. FCA USA, LLC (2022) 73 Cal.App.5th 821, 833 [internal quotation marks omitted].) In Wilson v. Wal-Mart Store, Inc., (1999) 72

Cal.App.4th. 382, the court held in most circumstances, a second section 998 offer supersedes a first offer for purposes of the cost-shifting provisions of the statute. Here, Defendant's February 5, 2026, section 998 offer superseded his earlier offer made on June 17, 2026.

Plaintiff also argues

the offer was invalid on its face due to CC: section 1542 waivers. However, the release did not require Plaintiff to release claims unrelated to the accident and did not impose broad, open-ended future liability. That narrow release did not invalidate the 998 offer.

Pre-Offer

Expert Costs

Defendant may

recover only the expert costs incurred after the February 5, 2026 Section 998 offer. Therefore, the Court will tax the following amounts from the total costs claimed.

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Innovus Consulting Group – Expert Luke Macyszyn
MD (Reply, Exhibit 15) \$5,600.00

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Innovus Consulting Group – Expert Luke Macyszyn
MD (Reply, Exhibit 17) \$11,600.00

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Voxel Imaging/Expert Alyssa Watanbe, MD (Reply,
Exhibit 18) \$7,800.00

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Paragon Forensics/Expert Brad Rutledge (Reply,
Exhibit) \$31,002.00

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Kaiser Expert Dr. Farahmand (Reply, Exhibit 21)
\$450.00

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Expert Dr. Stepan Kasimian (Reply, Exhibit 22)
\$5,800

.
Expert John Smith (Reply, Exhibit 23) \$2,250.00

2. Cost

Item No. 4(a-e) Deposition Costs

Plaintiff moves to
tax \$19,715.19 in deposition costs. A prevailing party recovers its costs for
“[t]aking, video recording, and transcribing necessary depositions....”
(Code Civ. Proc., § 1033.5, subd. (a)(3)(A).) Synchronizing recorded
sound to the video recording of a deposition is, in the Court’s view,
expressly allowable as a cost of “video recording ... necessary depositions”
under section 1033.5. Regardless, the Court also exercises its discretion
to allow the cost because it is reasonable in amount and necessary to the
conduct of the litigation. (Code Civ. Proc., § 1033.5, subd.

(c.)

Plaintiff

argues that Defendant failed to meet Plaintiff's burden of proof by producing 1) any proof of payment for these excessive invoices and (2) any evidence why these costs were reasonable or necessary. (Opposition p. 8.) However, Defendant has met his burden by providing a list of the deponents and the invoices incurred.

The

court finds that deposition costs were reasonably incurred and therefore are recoverable costs. Accordingly, the Court DENIES Plaintiff's motion to strike or tax costs as to the deposition costs.

3. Cost Item No.5 – Service of Process on Laura Roberts and Sero Kalamkarian.

Code of Civil

Procedure section 1033.5, subdivision (a)(4) expressly identifies "service of process by a public officer, registered process server, or other means..." as recoverable costs. "If service is by a process server..., the recoverable cost is the amount actually incurred in effecting service...." (Code Civ. Proc., § 1033.5, subd. (a)(4)(B).)

Plaintiff seeks to

strike the costs associated with serving Laura Robert and Sero Kalamkarian. Plaintiff first asserts that Laura Robert was represented by Plaintiff's counsel and that this was communicated to defense counsel. Plaintiff does not, however indicate that counsel agreed to accept service of a trial subpoena for Robert or otherwise agreed to ensure Robert's appearance at trial. Plaintiff next argues that the \$250 charge to serve Mr. Kalamkarian exceeds a reasonable cost. Plaintiff provides no supporting evidence for this assertion.

The

Court finds that the fees for service of process were reasonably incurred and for reasonable amounts; therefore, they are recoverable costs. Accordingly, the Court denies Plaintiff's motion to tax costs as to service of process.

4. Cost

Item No. 11: Court Reporter Fees

Court reporter

fees are recoverable under Code of Civil Procedure section 1033.5, subdivision (a)(11).

Plaintiff

contends that the cost for a court reporter fee was unnecessary. The Court strongly disagrees. The Court finds Defendant's request for court reporter fees is reasonably incurred, and therefore, the costs are recoverable.

Accordingly,

the Court DENIES Plaintiff's motion to strike or tax costs as to the court reporter fees.

5. Item

No. 13: Photocopy of Exhibits

Models,

the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact. (Code Civ. Proc. § 1033.5(a)(13).) The trial court "having presided over the trial" has "all the evidence needed to determine whether the items claimed were reasonably helpful to a trier of fact." (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 133.)

A verified

memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary. (Adams, supra, 199 Cal.App.4th at p. 1486.) Defendants provided a verified memorandum of costs with a reasonable figure for modes, enlargements, and exhibit photocopies

The

Court finds that the photocopies of exhibits, along with related costs such as courier services, blowback printing, binders, index tabs, and the hard drive, were all necessary to assist the trier of fact, and thus the costs were

reasonable.

6. Item

No. 15: Other

Plaintiff seeks to strike the costs listed under item no. 15, asserting that they are either duplicative of amounts claimed elsewhere or recoverable under Code of Civil Procedure section 1033.5, subdivision (c)(1).

First, the Court grants Plaintiff's motion to tax costs as to \$107.65 for "Bosco Legal Service" because Defendant has already claimed that cost in item no.2 – jury fees.

Second, the Court grants Plaintiff's motion to tax costs as to \$6,281.71 for "Hodson PI – subrosa" because this cost on its face appears not to be an allowable expense. (Code Civ. Proc., § 1033.5, subd. (b)(2)-(4).)

Third, the Court grants Plaintiff's motion to tax costs as to \$1,959.89 for "Magna Legal Service" because the court finds that these items were not reasonably necessary to the conduct of the litigation and were not reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(1).)

E. CONCLUSION

The Court GRANTS Plaintiff's motion to tax cost in part. Defendant Guochuan Tsai shall recover from Plaintiff Vita Andrisano costs in the amount of \$47,096.97.

DATED: August 26, 2026

Lee S. Arian

Judge of the
Superior Court